

ELIZABETH II



1970 CHAPTER v

An Act to provide for the transfer to Australia and New Zealand Banking Group Limited of the undertakings of Australia and New Zealand Bank Limited and The English, Scottish and Australian Bank, Limited and for other purposes incidental thereto and consequential thereon and to provide for the incorporation of Australia and New Zealand Savings Bank Limited in the State of Victoria in the Commonwealth of Australia, for the cesser of application to that company of provisions of the Companies Acts 1948 to 1967 consequent upon such incorporation; and for other purposes incidental thereto. [15th May 1970]

WHEREAS —

(1) Australia and New Zealand Bank Limited (hereafter referred to as “A.N.Z.”), Australia and New Zealand Banking Group Limited (hereafter referred to as “the Bank”), Australia and New

Zealand Savings Bank Limited (hereafter referred to as "the Savings Bank") and The English, Scottish and Australian Bank, Limited (hereafter referred to as "E.S.A.") are companies within the meaning of the Companies Acts 1948 to 1967 and are companies limited by shares:

(2) A.N.Z. and E.S.A. each carry on the business of banking:

(3) The Savings Bank carries on the business of a savings bank in the Commonwealth of Australia and elsewhere:

(4) The Savings Bank is a wholly-owned subsidiary of A.N.Z.:

1948 c. 38.

(5) By a scheme of arrangement sanctioned under section 206 of the Companies Act 1948 and which took effect on 23rd June, 1969, A.N.Z. and E.S.A. became wholly-owned subsidiaries of the Bank:

(6) The said scheme of arrangement was proposed with a view to the merger of the undertakings of A.N.Z. and E.S.A.:

(7) It is expedient in the interests of efficient and effective banking that the said merger should occur and that it should occur by means of a transfer of the said undertakings to the Bank:

(8) It is further expedient that the said transfer should be effected economically and without interference with the conduct and continuity of the business of banking:

(9) It is further expedient that the said undertakings should be transferred as provided in this Act and that the other provisions contained in this Act relative thereto and consequential thereon should be enacted:

(10) Having regard to the fact that the area of operation of the Savings Bank is largely in the Commonwealth of Australia, certain advantages would accrue to the Savings Bank if the Savings Bank were incorporated under the laws of the State of Victoria in the Commonwealth of Australia instead of under the laws of England and such incorporation would give the Savings Bank greater flexibility in the pursuit of its objectives in the Commonwealth of Australia:

(11) No procedure exists whereby the registration of a company to which the Companies Acts 1948 to 1967 apply can be transferred from England to another country:

(12) Procedure by way of winding up and dissolution of the Savings Bank and the transfer of assets to a new company incorporated in the State of Victoria in the said Commonwealth would involve loss of the identity of the Savings Bank and the disturbance of its financial structure and existing contracts and interfere with the continuity of its operations, with considerable attendant expense and inconvenience:

(13) It is expedient that the Savings Bank should become incorporated in the State of Victoria in the said Commonwealth and that subsequently the provisions of the Companies Acts 1948 to 1967 (with the exception of those provisions which apply to oversea companies) should cease to apply to the Savings Bank:

(14) The purposes of this Act cannot be effected without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted, and be it enacted, by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

PART I

PRELIMINARY

1. This Act may be cited as the Australia and New Zealand Short title.
Banking Group Act 1970.

2. This Act shall be divided into Parts as follows:—

Division of
Act into
Parts.

Part I.—Preliminary.

Part II.—Transfer of undertakings of Australia and New
Zealand Bank Limited and The English, Scottish
and Australian Bank, Limited.

Part III.—Incorporation of Australia and New Zealand
Savings Bank Limited in the State of Victoria
in the Commonwealth of Australia.

Part IV.—General.

3.—(1) In this Act “enactment” means an enactment in this Enactments.
Act or in any general or local Act or in any order, rule or regulation
made under any Act.

(2) Any reference in this Act to any enactment shall be construed as a reference to that enactment as applied, extended or amended by or by virtue of any subsequent enactment including any enactment in this Act.

4. In this Act, unless the subject or context otherwise requires— Interpretation.

“the appointed day” means such day as may be appointed
under section 5 (Appointed day) of this Act;

“the Bank” means Australia and New Zealand Banking
Group Limited;

PART I
—cont.

“excluded assets” means—

(a) any document required to be kept by an existing bank pursuant to the provisions of the Companies Acts 1948 to 1967;

(b) shares in Esanda Limited;

(c) shares in A.N.Z. Investments Limited;

(d) any loan by an existing bank to A.N.Z. Investments Limited;

(e) shares in E.S. & A. Savings Bank Limited;

(f) shares in Britannia Investment Company Pty. Limited; and

(g) any land situate outside the United Kingdom which is vested in, belongs to or is held by an existing bank otherwise than in the capacity of trustee or by way of security;

and “excluded asset” shall be construed accordingly;

“the existing banks” means Australia and New Zealand Bank Limited and The English, Scottish and Australian Bank, Limited and “existing bank” shall be construed accordingly;

“in the capacity of trustee” means (whether alone or jointly with any other person)—

(a) as trustee or custodian trustee of any trust deed, settlement, covenant, agreement or will and whether originally so appointed or not, and whether appointed under hand or seal or by order of any court or otherwise howsoever;

(b) as executor of the will of a deceased person;

(c) as administrator of the estate of a deceased person;

(d) as judicial trustee appointed by order of any court; or

(e) in any other fiduciary capacity whatsoever;

“the indebtedness of an existing bank to the Bank” means and includes all debts whatsoever which shall be owing by that existing bank to the Bank immediately before the appointed day;

“land” includes any estate, interest or right in, over or under land;

“liabilities” means duties and obligations of every description but does not include any duty or obligation of an existing bank relating to an excluded asset;

“ property ” means property and assets of every description wheresoever situate of an existing bank, and includes securities, rights and powers of every description, except any right or power of an existing bank relating to an excluded asset;

PART I
—cont.

“ security ” means a mortgage (whether legal or equitable), charge, debenture, bill of exchange, promissory note, guarantee, lien, pledge or other means of securing the payment of a debt, whether present or future, or the discharge of an obligation or liability, whether actual or contingent;

“ the undertaking of an existing bank ” means the business and all of the property, except any excluded asset, vested in or belonging to or held by that existing bank immediately before the appointed day and all of the liabilities, except the indebtedness of that existing bank to the Bank, to which that existing bank shall be subject immediately before that day; and

“ will ” includes a codicil and any other testamentary writing.

PART II

TRANSFER OF UNDERTAKINGS OF AUSTRALIA AND NEW ZEALAND BANK LIMITED AND THE ENGLISH, SCOTTISH AND AUSTRALIAN BANK, LIMITED

5.—(1) The Board of Trade may by order appoint a day for Appointed
the purposes of this Part of this Act. day.

(2) The power conferred by the last subsection shall be exercisable by statutory instrument.

6.—(1) On the appointed day the undertakings of the existing Transfer of
banks shall by virtue of this Act be transferred to and vest in undertakings.
the Bank and the indebtedness of the existing banks to the Bank
shall by virtue of this Act be wholly cancelled and extinguished.

(2) The production of a copy of this Act printed by the Queen's Printer shall on and after the appointed day be conclusive evidence in all courts and proceedings of the transfer of the undertakings of the existing banks to the Bank and of their vesting in the Bank; and without prejudice to the generality of the foregoing, any such copy of this Act shall, in relation to all registered securities within the meaning of the Stock Transfer Act 1963 1963 c. 18. which are transferred and vested by virtue of this Act, operate for all the purposes of the said Act of 1963 as a duly executed stock transfer in respect of the transfer and vesting of such securities.

(3) If any portion of the undertaking of an existing bank cannot be vested in the Bank by virtue of this Act because transfers of that portion are governed otherwise than by the law of a part of the United Kingdom, then that existing bank shall so soon as is

PART II
—cont.

practicable after the appointed day take all necessary steps for the purpose of securing that the portion is effectively transferred to the Bank.

(4) For the avoidance of doubt it is hereby declared that the transfer of an interest in land under and by virtue of this Act shall not—

1954 c. 56.

- (a) constitute a purchase or creation of that interest for the purposes of section 30 (2) of the Landlord and Tenant Act 1954 (which restricts a landlord's right to oppose an application for a new tenancy of business premises in certain cases); or
- (b) constitute an assignment, transfer, devolution, parting with possession or other disposition of that interest for the purposes of any provision relating to assignment, transfer, devolution, parting with possession or other disposition contained in any instrument concerning that interest; or
- (c) invalidate or discharge any contract or security; or
- (d) operate so as to merge any leasehold interest in the reversion which is expectant thereon.

Saving of
contracts, etc.

7.—(1) Subject to the provisions of this section, all contracts, agreements, conveyances, deeds, leases, licences and other instruments or undertakings entered into by or made with or addressed to an existing bank (whether alone or with any other person) before and in force on the appointed day shall on and after that day to the extent that they were previously binding upon and enforceable against the existing bank, be binding and of full force and effect in every respect against or in favour of the Bank as fully and effectually as if, instead of an existing bank, the Bank had been a party thereto or bound thereby or entitled to the benefit thereof:

Provided that the provisions of this subsection shall not apply to the indebtedness of an existing bank to the Bank (or to any part of such indebtedness), or to any contract, agreement, conveyance, deed, lease, licence, instrument or undertaking relating to an excluded asset:

And provided further that no director, secretary or auditor of an existing bank shall by virtue only of this Act become a director, secretary or auditor (as the case may be) of the Bank.

1965 c. 62.

(2) In relation to every contract of employment to which subsection (1) of this section applies, the provisions of the said subsection shall operate to substitute the Bank for the existing bank which was the employer thereunder immediately before the appointed day but not to constitute a termination of such contract for the purposes of the Redundancy Payments Act 1965.

8. Without prejudice to the generality of the foregoing provisions of this Act, the following provisions shall have effect with relation to the banking businesses of the existing banks:—

PART II
—cont.

Banking
business.

- (a) The relationship between an existing bank and a customer at any office or branch of that existing bank shall on and after the appointed day be between the Bank and such customer and shall give rise to the same rights and the same duties (including rights of set-off) as would have existed before that day if such relationship had been between the Bank and the customer, and so that any instruction, order, direction, mandate or authority given by such customer to the existing bank and subsisting at or given after the appointed day shall, unless and until revoked or cancelled, be deemed to have been given to the Bank;
- (b) Any security held by an existing bank as security for the payment of debts or liabilities (whether present or future, actual or contingent) of any person shall be transferred or deemed to be transferred to the Bank on the appointed day and shall be held by and be available to the Bank as security for the payment of such debts and liabilities to the Bank; and where the security extends to future advances or to future liabilities of such person, the said security shall as on and after that day be held by and be available to the Bank as security for future advances to the said person by, and future liabilities of the said person to, the Bank to the same extent to which future advances by, or liabilities to, the existing bank were secured thereby immediately before that day;
- (c) The Bank shall, in relation to any security transferred or deemed to have been transferred to it in accordance with or by virtue of the provisions of this Act and the moneys thereby secured, be entitled to the same rights and priorities and subject to the same obligations and incidents as the existing bank from which the same has been transferred or deemed to have been transferred would have been entitled and subject to if the same had continued to be held by the said existing bank;
- (d) The custody of any document, goods or thing held by an existing bank as bailee for any other person at any office or branch of such existing bank shall be transferred or deemed to be transferred to the Bank on the appointed day and the rights and obligations of such existing bank under any contract of bailment relating to such document, goods or thing shall be transferred or deemed to be transferred on that day to the Bank;
- (e) Any negotiable instrument or order for payment of money, whether drawn, given, accepted or endorsed

PART II
—cont.

before, on or after the appointed day, which is expressed to be drawn on, or given to, or accepted or endorsed by, an existing bank, or payable at any place of business of an existing bank shall have the same effect on and after the appointed day as if it had been drawn on, or given to, or accepted or endorsed by, the Bank, or payable at the same place of business of the Bank.

Actions, etc.,
not to abate.

9. Any action, arbitration or proceeding and any cause of action, arbitration or proceeding which shall on the appointed day be pending or existing by, against or in favour of an existing bank shall not abate or be discontinued or be in any way prejudicially affected by reason of the provisions of this Act, but the same may be prosecuted, continued and enforced by, against or in favour of the Bank as and when it might have been prosecuted, continued and enforced by, against or in favour of an existing bank if this Act had not been passed:

Provided that this section shall not apply to any action, arbitration or proceeding or to any cause of action, arbitration or proceeding relating to an excluded asset.

Documents,
etc., to remain
evidence.

10.—(1) Any book or other document which if this Act had not been passed would have been evidence in respect of any matter for or against an existing bank shall, on and after the appointed day, be admitted in evidence in respect of the same matter for or against the Bank.

1968 c. 64.

(2) In this section “document” has the same meaning as in section 10 of the Civil Evidence Act 1968.

Application
of Bankers’
Books
Evidence
Act 1879.
1879 c. 11.

11.—(1) Notwithstanding the transfer of the undertakings of the existing banks to the Bank under and in the terms of this Act, the provisions of the Bankers’ Books Evidence Act 1879 shall continue to apply with respect to the books of the existing banks which are transferred to the Bank by virtue of this Act and to entries made in such books before the appointed day.

(2) For the purposes of this section, “books” include ledgers, day books, cash books, account books and all other books and records used in the ordinary business of an existing bank before the appointed day.

Application of
enactments
and
documents.

12.—(1) Subject to the provisions of this section, where—

- (a) any enactment other than an enactment in this Act; or
- (b) any document whensoever made or executed;

contains any reference express or implied to an existing bank such reference shall, on and after the appointed day and except where the context otherwise requires, be read, construed and have effect as a reference to the Bank:

Provided that this subsection shall not apply to any reference to an existing bank in relation to an excluded asset in an enactment or document.

PART II
—cont.

(2) Notwithstanding anything in the preceding subsection where in pursuance thereof a reference to an existing bank in any document constituting or relating to any pension scheme, provident fund or officers' guarantee fund of that existing bank in force immediately before the appointed day is to be read, construed and have effect as a reference to the Bank, for the purpose of ascertaining and calculating the right to benefit thereunder, service or employment with that existing bank prior to the appointed day shall be taken into account as if it were service or employment with the Bank, but the coming into force of this section shall not of itself give rise to any claim to benefit under any such scheme or fund or operate to cause a person to become a member of another pension scheme, provident fund or officers' guarantee fund.

(3) Without prejudice to the generality of subsection (1) of this section, where by any order of the court or by any trust deed, settlement, covenant or agreement or where by any will, whether made or executed before, on or after the appointed day, an existing bank (whether alone or with any other person) was or is granted letters of administration or appointed trustee, executor, guardian or in any other fiduciary capacity, such order, trust deed, settlement, covenant, agreement or will shall not fail by reason of anything in this Act but shall as from the appointed day be read and construed and have effect as if for any reference therein to that existing bank there was substituted a reference to the Bank.

(4) Nothing in this Act shall exempt the Bank from the provisions of any enactment relating to companies carrying on the business of banking.

PART III

INCORPORATION OF AUSTRALIA AND NEW ZEALAND SAVINGS BANK LIMITED IN THE STATE OF VICTORIA IN THE COMMONWEALTH OF AUSTRALIA

13. In this Part of the Act, unless the subject or context otherwise requires— Interpretation
of Part III.

“ the Companies' Registrar ” means the registrar or other officer performing under the Companies Acts 1948 to 1967 the duty of registrar of companies in England;

“ the date of incorporation ” means the date on which the Savings Bank becomes a company incorporated under the laws of Victoria;

PART III
—cont.

“existing” means existing immediately before the date of incorporation;

“the Savings Bank” means Australia and New Zealand Savings Bank Limited; and

“Victoria” means the State of Victoria in the Commonwealth of Australia.

Power to become incorporated in Victoria.

14. Subject to the laws in force in Victoria and with such legislative, governmental, municipal or other authority, concession, licence or consent as is necessary, the Savings Bank may become incorporated under the laws of Victoria.

Registrar in England to strike off register but identity to be preserved.

15.—(1) As soon as reasonably practicable after the date of incorporation the Savings Bank shall notify the Companies' Registrar thereof by cablegram and shall also transmit to him by registered or insured post a copy of the certificate of the incorporation of the Savings Bank in Victoria certified by an official thereunto authorised by the laws of Victoria and upon receipt thereof the Companies' Registrar shall, with effect from the date of incorporation, strike the name of the Savings Bank from the register in England and on and from that date the provisions of the Companies Acts 1948 to 1967 (with the exception of those provisions which apply to oversea companies) shall not apply to the Savings Bank, but the Savings Bank shall not thereby cease or be deemed to cease to exist but shall instead be a company incorporated under the laws of Victoria and subject thereto for all purposes shall be and be deemed to be the same company as the existing company.

(2) The Companies' Registrar shall retain and register the copy of the certificate of incorporation.

Copy of Act to be registered in England.

16. The Savings Bank shall deliver to the Companies' Registrar a printed copy of this Act and he shall retain and register the copy delivered, and if no such copy is so delivered within three months from the date of the passing of this Act, the Savings Bank shall incur a fine not exceeding two pounds for every day after the expiration of those three months during which the default continues and any director or manager of the Savings Bank who knowingly and wilfully neglects to secure observance of the requirement of this section shall incur the like fine. Every fine under this section shall be recoverable summarily.

PART IV**GENERAL**

Application to Northern Ireland.

17.—(1) It is hereby declared that this Act extends to Northern Ireland.

(2) In the application of this Act to Northern Ireland—

PART IV

—cont.

- (a) the provisions thereof shall be treated for the purposes of section 6 of the Government of Ireland Act 1920 1920 c. 67. (which provides that the Parliament of Northern Ireland may not repeal or alter Acts of Parliament of the United Kingdom passed after the day appointed for the purposes of that section) as passed before that day; and
- (b) the expression “Act” shall include an Act of the Parliament of Northern Ireland.

18. This Act shall extend to Scotland and in the application thereof to Scotland the expression “mortgage” means a bond and disposition or assignation in security.

19. All the costs, charges and expenses preliminary to and of and incidental to the preparing, applying for, obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Bank.

PRINTED IN ENGLAND BY THE OYEZ PRESS
PRINT DIVISION OF THE SOLICITORS' LAW STATIONERY SOCIETY, LTD.
FOR C. H. BAYLIS

Controller of Her Majesty's Stationery Office and Queen's Printer of Acts of Parliament

LONDON: PUBLISHED BY HER MAJESTY'S STATIONERY OFFICE

1s. 9d. [9p] net



Australia and New Zealand Banking Group Act 1970

CHAPTER v

ARRANGEMENT OF SECTIONS

PART I PRELIMINARY

Section

1. Short title.
2. Division of Act into Parts.
3. Enactments.
4. Interpretation.

PART II

TRANSFER OF UNDERTAKINGS OF AUSTRALIA AND NEW ZEALAND BANK LIMITED AND THE ENGLISH, SCOTTISH AND AUSTRALIAN BANK, LIMITED

5. Appointed day.
6. Transfer of undertakings.
7. Saving of contracts, etc.
8. Banking business.
9. Actions, etc., not to abate.
10. Documents, etc., to remain evidence.
11. Application of Bankers' Books Evidence Act 1879.
12. Application of enactments and documents.

PART III

INCORPORATION OF AUSTRALIA AND NEW ZEALAND SAVINGS
BANK LIMITED IN THE STATE OF VICTORIA IN THE COMMONWEALTH
OF AUSTRALIA

Section

13. Interpretation of Part III.
14. Power to become incorporated in Victoria.
15. Registrar in England to strike off register but identity to be preserved.
16. Copy of Act to be registered in England.

PART IV

GENERAL

17. Application to Northern Ireland.
18. Application to Scotland.
19. Costs of Act.